NON-DISCLOSURE AGREEMENT

This Non-Disclosure Agreement ("Agreement") is entered into as of March 3, 2025 ("Effective Date") between:

***ABC GmbH**, a company organized under the laws of the Federal Republic of Germany, with its registered office at ABC-strasse 42, 80339 Munich, Germany ("ABC"), and*

***Westfield Solutions Inc.**, a company organized under the laws of the State of Delaware, United States, with its principal place of business at 350 Fifth Avenue, Suite 4800, New York, NY 10118, USA ("Counterparty"),*

each a "Party" and collectively the "Parties."

1. Purpose.

The Parties wish to exchange confidential information for the purpose of exploring a potential consulting engagement related to digital transformation strategy (the "Purpose").

2. Confidential Information.

"Confidential Information" means any and all information, whether in written, oral, electronic, or other form, disclosed by one Party (the "Disclosing Party") to the other (the "Receiving Party") in connection with the Purpose, whether or not marked or designated as confidential. Information disclosed orally need not be confirmed in writing.

3. Exceptions.

Confidential Information does not include information that the Receiving Party can demonstrate by written records: (a) is or becomes publicly available through no fault of the Receiving Party; (b) was already in the Receiving Party's possession prior to disclosure; (c) is received from a third party without restriction on disclosure; or (d) is independently developed by the Receiving Party without use of the Confidential Information.

4. Obligations.

The Receiving Party shall protect Confidential Information using at least the same degree of care it uses for its own confidential information, but no less than reasonable care. The Receiving Party shall use Confidential Information solely for the Purpose.

5. Permitted Recipients.

The Receiving Party may disclose Confidential Information to its employees and affiliates on a need-to-know basis, provided they are bound by confidentiality obligations no less restrictive than those in this Agreement. Disclosure to external agents, advisors, or contractors requires prior written notice to the Disclosing Party, and such recipients must execute a separate confidentiality undertaking in a form reasonably acceptable to the Disclosing Party.

6. Compelled Disclosure.

If the Receiving Party is required by law or regulation to disclose Confidential Information, it shall promptly notify the Disclosing Party (to the extent legally permitted) and cooperate to limit the scope of disclosure.

7. No Warranty.

All Confidential Information is provided "AS IS." The Disclosing Party makes no warranty as to its accuracy, completeness, or fitness for any purpose. Neither Party shall be liable for any damages arising from the other Party's use of or reliance on the Confidential Information.

8. No Rights Granted.

Nothing in this Agreement grants either Party any license, right, or interest in the other Party's intellectual property, patents, copyrights, trade secrets, or know-how. Disclosure does not constitute a transfer of ownership. To the extent that any joint intellectual property arises from activities conducted under the Purpose, the Parties agree to negotiate the terms of ownership and use in a separate written agreement.

9. Return or Destruction.

Upon written request or termination of this Agreement, the Receiving Party shall return or destroy all Confidential Information within sixty (60) days and provide written certification of such return or destruction signed by an authorized officer. The Receiving Party may retain copies solely to the extent required by applicable law or regulation, provided that any such retained copies remain subject to the obligations of this Agreement for the duration of their retention.

10. Term and Confidentiality Period.

This Agreement shall remain in effect for a period of two (2) years from the Effective Date, unless terminated earlier by either Party upon thirty (30) days' written notice. The confidentiality obligations shall survive for a period of three (3) years from the date of each individual disclosure.

11. Liability and Remedies.

No contractual penalty shall apply under this Agreement. Each Party's liability under this Agreement shall be governed by applicable law, provided that neither Party shall be liable for indirect, incidental, or consequential damages arising from slight negligence (leichte Fahrlässigkeit). Remedies for breach shall be limited to actual damages proven by the aggrieved Party.

12. Non-Solicitation.

During the term of this Agreement and for a period of twelve (12) months following its termination or expiration, neither Party shall directly solicit for employment any employee of the other Party who was personally involved in the exchange of Confidential Information under this Agreement. This restriction does not apply to general recruitment advertising or to any employee who responds to such advertising without direct solicitation.

[Added → Fallback 2: Non-solicitation clause limited to direct solicitation of employees personally involved in the Purpose, during term + 12 months. General advertising and unsolicited applications excluded.]

13. Governing Law.

This Agreement shall be governed by and construed in accordance with the laws of the Federal Republic of Germany, without regard to its conflict of laws principles.

14. Dispute Resolution.

Any dispute arising out of or in connection with this Agreement shall be finally settled by arbitration under the LCIA Arbitration Rules. The seat of arbitration shall be London, England. The arbitral tribunal shall consist of one (1) arbitrator. The language of the arbitration shall be English. Nothing in this clause prevents either Party from seeking injunctive relief from a court of competent jurisdiction.

15. General.

This Agreement constitutes the entire agreement between the Parties regarding the subject matter hereof. Amendments must be in writing and signed by both Parties. This Agreement may be executed in counterparts.

***IN WITNESS WHEREOF**, the Parties have caused this Agreement to be executed by their duly authorized representatives.*

ABC GmbH	**Westfield Solutions Inc.**
Name: _____	Name: _____
Title: _____	Title: _____
Signature: _____	Signature: _____
Date: _____	Date: _____